QP CODE: 25900876

MAHATMA GANDI UNIVERSITY, KOTTAYAM
FIRST SEMESTER MGU-UGP (HONOURS) REGULAR/IMPROVEMENT EXAMINATION, NOVEMBER 2025
Discipline Specific Course (DSC)– MG1DSCJMC101 - CONSTITUTIONAL LAW
(2024 Admission Onwards)

Time: 2 Hours Max. Marks : 70

Part A
Multiple Choice Questions.
*Answer **all** questions. Each question carries **1** mark*

1. (a) Sachidananda Sinha
2. (c) Mandamus
3. (a) Speaker
4. (c) The financial stability or credit of India is threatened
5. (d) Nationalism
6. (b) Non-justiciable
7. (b) President
8. (a) 356
9. (d) Option (A), (B) & C
10.(c)Governor

(10x1=10)

Part B

*Short Answer Type Questions. Answer any **ten** questions. Each question carries **3** marks*

11. Constitution of India is neither purely federal nor purely unitary, but is a combination of both federal and unitary features.

12. No man is above the law and every person is subject to the jurisdiction of ordinary courts. Equal law should be applied to all in the same situation and there should be no discrimination between one person to another. Like should be treated alike.

13. The Parliament is empowered to make any law with respect to any matter not enumerated in the state or concurrent list. Parliament can also make laws with respect to any matter in the state list, if it is approved by the Rajya sabha by 2/3 majority in the interest of the nation.

14. Secularism means a state which does not recognize any religion as a state religion. It treats all religions equally. Secularism is a basic feature of the Indian Constitution. Articles 25 to 28 of the Constitution guarantee to every person the freedom of conscience and the right to profess, practise and propagate religion.

15. Rigid constitution – i) usually written ii) difficult to amend iii) provides permanence Flexible constitution – i) usually unwritten ii) easy to amend iii) provides flexibility

16. Rights of arrested persons under ordinary laws - i) Right to be informed on the grounds of arrest ii) Right to consult and to be represented by a lawyer of his own choice iii) Right to be produced before a magistrate within 24 hours of his arrest iv) No detention beyond 24 hours except by the order of the magistrate. Rights of arrested persons under Preventive Detention Laws - i) Review by Advisory Board ii) Grounds of detention must be communicated to the detinue iii) Right of representation.

17. Original Jurisdiction – Entertain disputes between Govt. of India and one or more states or between Govt. of India and any state or states on one side and one or more states on the other side or between two or more states. Advisory Jurisdiction - President may refer a question of law or fact for the advisory opinion of the Supreme Court and the court may after such hearing as it thinks fit report to the President its opinion thereon.
18. Members of the legislature are entitled to immunity from arrest during the session of the legislature and also for 40 days before and after the session of the legislature in civil proceedings. However this privilege is not available in a criminal charge or contempt of court or preventive detention. Arrest must be informed to the presiding officer of the house.
19. Article 25(1) of the Constitution guarantees i) Freedom of conscience – freedom to mould relation with God ii) Right to profess religion – right to declare openly one's own faith or belief iii) Right to practise religion- right to perform prescribed religious rites and duties and to exhibit religious belief iv) Right to propagate religion –right to spread and publicise religious views for the edification of others
20. Centre State legislative relations: i) Territorial jurisdiction ii) Subject matter of legislation iii) Residuary powers of the Parliament
21. i) To abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem. ii) To cherish and follow the noble ideals that inspired the national struggle for freedom iii) To uphold and protect the sovereignty, unity, and integrity of India.
22. Centre State administrative relations: i) Direction by the Union to State Govt. ii) Delegation of Authority iii) All India Service common to union and states iv) Grant in aid to state govt. v) Parliament's power to adjudicate disputes relating to distribution of water of inter-state rivers and river valleys.

(10x3=30)

Part C

*Answer any **two** questions. Each question carries **15** marks*

23.Acquisition of Citizenship– i) by birth ii) by descent iii) by registration iv) by naturalization v) by territorial incorporation. Loss of Citizenship- (i) voluntary renunciation of citizenship (ii) Termination - acquiring citizenship of another country (iii) Deprivation- by a government order.
24. The Directive Principles of State Policy contained in Part IV of the Constitution set out the aims and objectives to be taken up by the state in the governance of the country. It contains a list of socio- economic rights and freedoms which the state is expected to secure for the people through suitable legislative enactments. Classification of Directive Principles: (i) Socio-economic charter (ii) Social security charter (iii) Community welfare charter
25. a) Scheme of distribution of source of revenue between the centre and states b) Appointment of finance commission c) Grant in aid to states d) Jurisdiction of central and state governments over imposition of taxes.
26. National Emergency (A.352) – Proclaimed by the President if he is satisfied that the security of India or any part of it is threatened by war, external aggression or armed rebellion. It can be declared for the whole or any part of India. National emergency shall cease to be in operation at the expiration of one month unless before the expiry of one month it has been approved by resolutions of both houses of Parliament. A proclamation of national emergency approved by the Parliament shall remain in force for a period of six months from the date of passing the resolution.

(2x15=30)